



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00079 Gysel Whitney (Whitney Ranch, 4th Filing) Annexation
Date: April 12, 2021

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/12/2021
- Public Services Committee 4/20/2021
- 2nd reading 4/26/2021
- Public Services Committee 5/4/2021
- Third and final reading 5/10/2021

Related Items:

- Gysel Whitney (Whitney Ranch, 4th Filing) Zone Change (UDC-21-00080)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTHWEST OF AND ADJACENT TO THE INTERSECTION OF DELL RANGE BOULEVARD AND WHITNEY ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Gysel Whitney, LLC, owners of:

A parcel of un-platted land being situated in a portion of the southeast one-quarter of Section 23, Township 14 North, Range 66 West, of the 6th Principal Meridian; being more particularly described as follows:

Considering the east line of said southeast quarter of Section 23 being monumented by a found iron rod at the east one quarter corner and a found aluminum cap at the southeast corner of Section 23. said line bears S00°26'28"W at a distance of 2,644.52 feet with all bearings hereon relative thereto.

Beginning at the intersection of the south right of way of Dell Range Boulevard and the east right of way Whitney Road; thence along said south right of way the following courses and distances: S89°33'10"W a distance of 2707.51 feet to a point of change in right of way width; thence N00°40'06"E a distance of 10.00 feet to a point; thence N89°16'58"W a distance of 200.08 feet to a point; thence leaving said south right of way N00°11'03"W a distance of 80.00 feet to a point on the north right of way of said Dell Range Boulevard; thence along said north right of way the following courses and distances: S89°16'58"E a distance of 200.05 feet to a point; thence N89°33'10"E a distance of 527.20 feet to a point; thence leaving said north right of way line N00°28'26"E a distance of 1531.40 feet to a point; thence S89°33'14"E a distance of 2180.40 feet to a point on said east right of way of Whitney Road; thence along said east right of way S00°26'28"W a distance of 1587.42 feet to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-2 Agricultural by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



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CITY OF CHEYENNE GOVERNING BODY

April 12, 2021

STAFF REPORT

FILE: UDC-21-00079: Annexation of Gysel Whitney LLC (Whitney Ranch, 4th Filing)

REQUEST: An annexation of 81.8 acres of land

LOCATION: Northwest of and adjacent to the intersection of Dell Range Boulevard and Whitney Road.

APPLICANT: Whitney Ranch, LLC

AGENT: Brad Emmons, AVI, PC

OWNER: Gysel Whitney, LLC

PURPOSE: To allow grading under City jurisdiction for future urban-level development

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne
- East Dell Range Blvd / US 30 Corridor Study
- Whitney Road Corridor Plan

BACKGROUND:

The applicant is requesting annexing of 81.8 acres of land for future residential and commercial development. The County Assessor presently shows the tract of land as part of one larger unplatted parcel. The land is currently undeveloped in the County. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County A-2 Agricultural to the City zone of AG Agricultural. While the AG zone does not allow urban-style uses, it is appropriate as a holding zone until development plans are finalized. The purpose of this annexation is to allow preliminary actions (such as grading) to occur under the City's jurisdiction prior to finalizing the development patterns. A preliminary plat for the area, with lots and blocks designed for residential and commercial development, was approved in August 2020. It is anticipated that a final plat and a rezoning application would come before the Governing Body within a year of this annexation.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential and Mixed-Use Commercial	County A-2	Undeveloped, one residence
North	Urban Residential	County A-2	Undeveloped
South	Urban Residential	County AR	Low density Single-family Residential
East	Urban Residential and Mixed-Use Commercial	County LR, County MU, County AR	Rural Residential, Undeveloped
West	Urban Residential	MR, County AR	Single-family Residential

The property is currently zoned A-2 Agricultural in the County. The property is concurrently proposed to be annexed and rezoned to the AG Agricultural. The AG zone is generally described as an agricultural or natural area zone, where most typical urban-style uses are prohibited. The AG zone is applicable to areas where significant natural lands or open spaces are to be protected, or as an interim or holding zone for areas that may be further developed in the long term, but where minimal development activity in the interim is acceptable and will not prematurely establish development patterns.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the west and the proximity to urban-style development to the south makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer lines exist in the vicinity and could be extended with the development of the property.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation are about 8.2% contiguous, along the western edge.

The application **complies** with this review criterion.

- 5) **If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) **The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on March 12, 2021. The public hearing for this annexation is scheduled for April 12, 2021. Twenty (20) business days prior to the announced public hearing is March 15, 2021. The earliest confirmation of delivery was dated March 13, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne
- East Dell Range Blvd / US 30 Corridor Study
- Whitney Road Corridor Plan

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with an urban residential style of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure.

The East Dell Range Blvd / US 30 Corridor Study and the Whitney Road Corridor Plan both anticipate that this area to develop with urban-style commercial and residential uses. Urban-style uses are best served by being within City limits and connecting to City services.

STAFF REVIEW:

Through the review process, the following comments were received:

- Annexation is appropriate from an environmental health perspective
- Annexation will bring Dell Range Boulevard and Whitney Road and the intersection into city limits

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

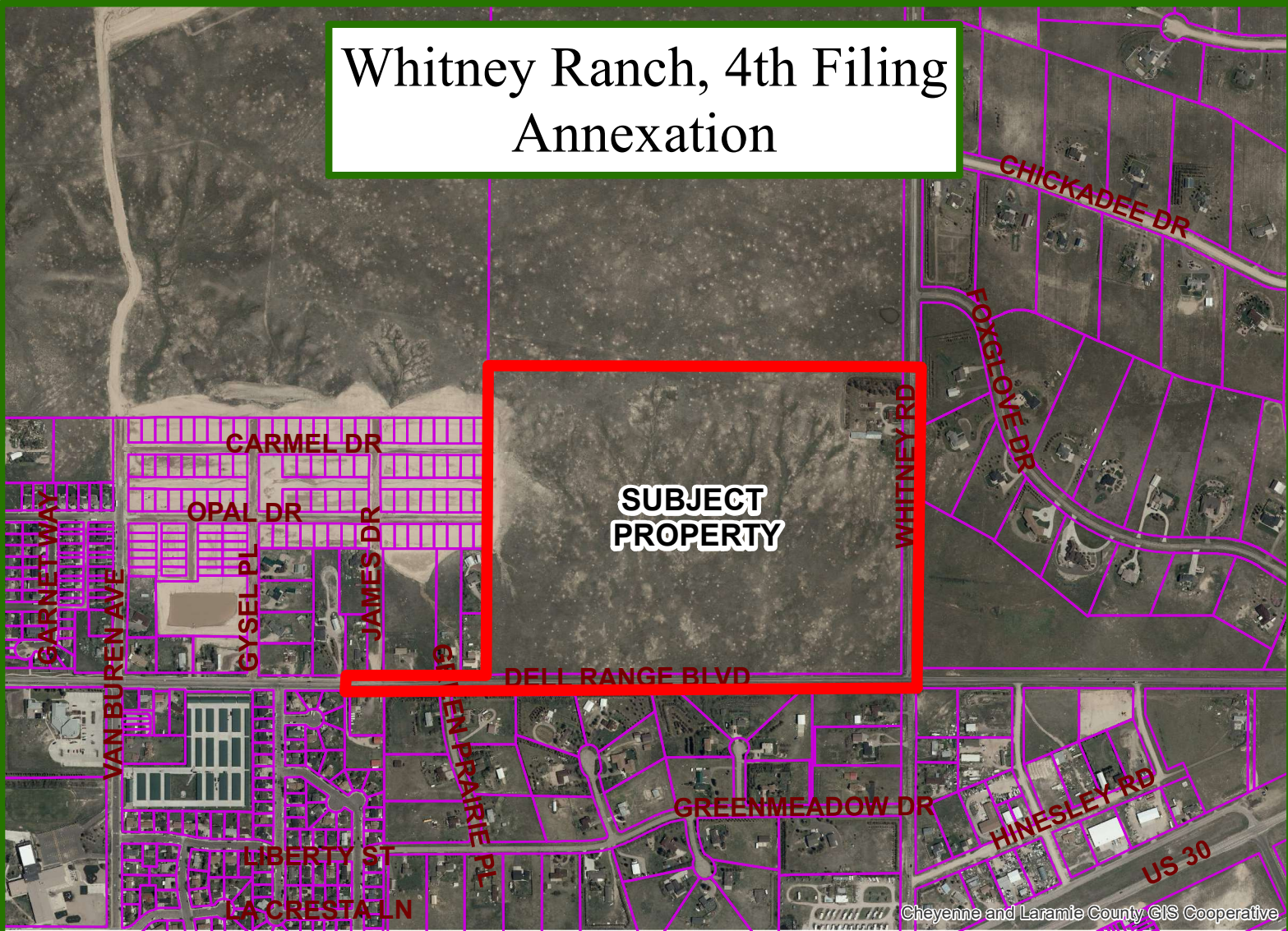
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

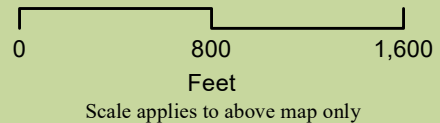
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map
4. Supporting photos

Whitney Ranch, 4th Filing Annexation

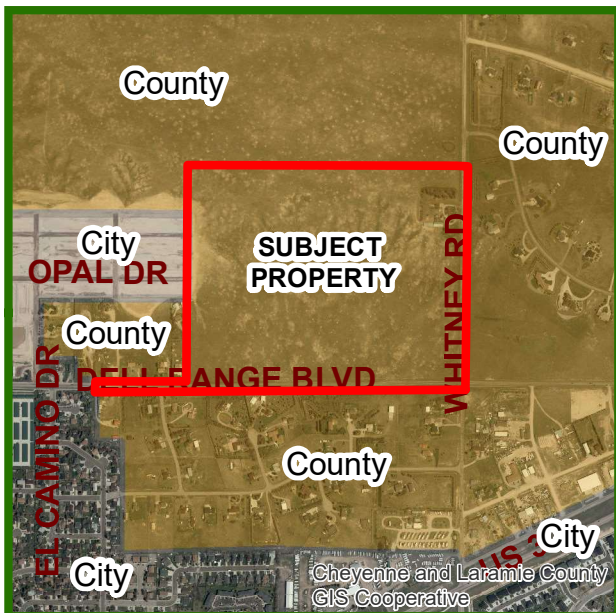


Application Number
Annexation
UDC-21-00079

Applicant: AVI, PC
Brad Emmons, AICP
Owner: Gysel Whitney, LLC

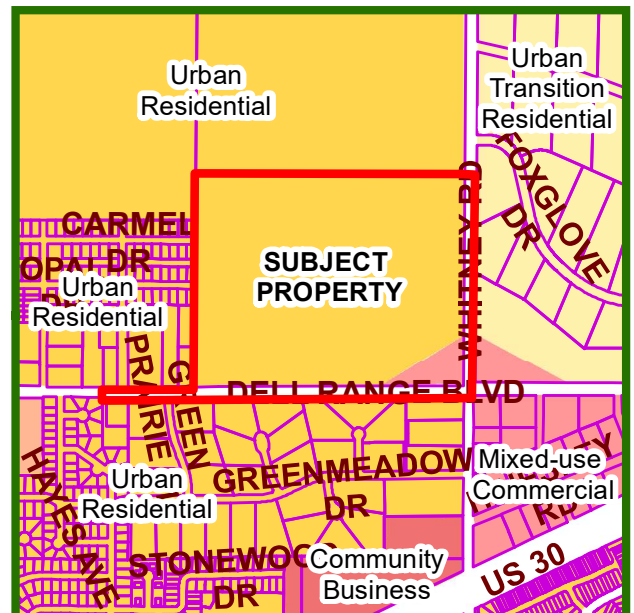


Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **3 March 2021, 5:08PM**
Receipt number: **5**
Related form version: **8**

General Information

Applicant Name: **Whintey Ranch LLC, Joe Patterson**

Applicant Address: **6636 Cedar Ave S Suite 300**

Applicant City: **Minneapolis**

Applicant State: **MN**

Applicant Zip Code: **55423**

Applicant Phone: **3072201772**

Applicant Email: **joe@guardiancompanies.com**

Representative Name: **AVI, Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **+13076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Gysel Whitney LLC**

Owner Address: **PO Box 72**

Owner City: **Albin**

Owner State:	WY
Owner Zip Code:	82050
Owner Phone:	3072463294
Owner Email:	bholgerson@rtconnect.net
Who is the primary contact regarding this application?	Representative
Letter of Authorization	loa_gysel_whitney_001.pdf
Project Location (Street Address or General Location):	NW Corner of Dell Range Blvd and Whitney
Assessor's Parcel ID number(s)	Portion of R0018369
Total Project Area	81.77
Current Zoning	County A-2
Proposed Zoning	AG - Agricultural

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	unplatted
Formal Annexation Petition	PETITION FOR ANNEXATION.pdf
Board of Public Utilities Clearance Form	unsigned annexation-bopu-clearance.pdf
Annexation Map	4258 WHITNEY 4TH ANNEX SUBMIT 3-3-21.pdf

Signature / Certification

Applicant Signature	Name of signatory: Brad Emmons  Uploaded signature image: brad emmons.jpg
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Please enter an email address for an email receipt. **emmons@avipc.com**



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

**AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:**

KNOW ALL THAT Gysel Whitney LLC,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

THE FOLLOWING IS A DESCRIPTION FOR A PARCEL OF LAND LOCATED IN THE SOUTHEAST
ONE-QUARTER OF SECTION 23, TOWNSHIP 14 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL
MERIDIAN.

CONSIDERING THE EAST LINE OF SAID SOUTHEAST QUARTER OF SECTION 23 BEING
MONUMENTED BY A FOUND IRON ROD AT THE EAST ONE QUARTER CORNER AND A FOUND
ALUMINUM CAP AT THE SOUTHEAST CORNER OF SECTION 23. SAID LINE BEARS S00°26'28"W
AT A DISTANCE OF 2,644.52 FEET WITH ALL BEARINGS HEREON RELATIVE THERETO.

BEGINNING AT THE INTERSECTION OF THE SOUTH RIGHT OF WAY OF DELL RANGE
BOULEVARD AND THE EAST RIGHT OF WAY WHITNEY ROAD; THENCE ALONG SAID SOUTH
RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: S89°33'10"W A DISTANCE OF
2707.51 FEET TO A POINT OF CHANGE IN RIGHT OF WAY WIDTH; THENCE N00°40'06"E A
DISTANCE OF 10.00 FEET TO A POINT; THENCE N89°16'58"W A DISTANCE OF 200.08 FEET TO A
POINT; THENCE LEAVING SAID SOUTH RIGHT OF WAY N00°11'03"W A DISTANCE OF 80.00 FEET
TO A POINT ON THE NORTH RIGHT OF WAY OF SAID DELL RANGE BOULEVARD; THENCE
ALONG SAID NORTH RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: S89°16'58"E
A DISTANCE OF 200.05 FEET TO A POINT; THENCE N89°33'10"E A DISTANCE OF 527.20 FEET TO
A POINT; THENCE LEAVING SAID NORTH RIGHT OF WAY LINE N00°28'26"E A DISTANCE OF
1531.40 FEET TO A POINT; THENCE S89°33'14"E A DISTANCE OF 2180.40 FEET TO A POINT ON
SAID EAST RIGHT OF WAY OF WHITNEY ROAD; THENCE ALONG SAID EAST RIGHT OF WAY
S00°26'28"W A DISTANCE OF 1587.42 FEET TO THE POINT OF BEGINNING.

SAID PARCEL CONTAINS 81.77 ACRES MORE OR LESS.

The undersigned petitioners hereby respectfully request that said property and
adjacent streets be annexed to the City of Cheyenne, and be made a part
thereof.

By submitting the petition for annexation, the undersigned agree to abide with
all applicable provisions and City ordinances, rules, and regulations involving
annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

Connie J. Holgerson Connie J Holgerson 3/2/2021
Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Signature Printed Name Date

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:

